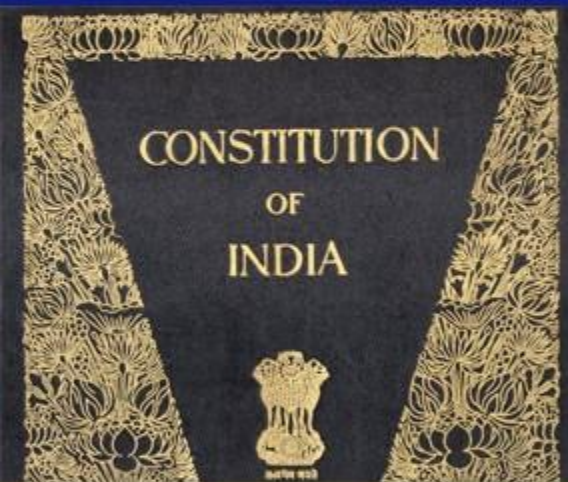


INDIAN POLITY



MODULE - 23

CITIZENSHIP

- CONSTITUTIONAL PROVISIONS
(ARTICLES 5 TO 11)

CITIZENSHIP

MEANING OF CITIZENSHIP



- 1 The population of a State is divided into two classes- **citizens** and **aliens**. While citizens enjoy full civil and political rights, aliens do not enjoy all of them.
- 2 Citizens are members of the political community to which they belong. They are the people who compose the State.

CITIZENSHIP

MEANING OF CITIZENSHIP



- 3 The Citizenship provides
 - full political membership in the state
 - permanent allegiance to the state
 - Official recognition by the state of his integration into the political system.
- 4 The citizen pledges loyalty to the state and the state protects the citizens.

CITIZENSHIP

CONSTITUTIONAL RIGHTS AND PRIVILEGES OF CITIZENS OF INDIA



- 1** The question of citizenship became particularly important at the time of the making of our Constitution because the Constitution sought to confer certain rights and privileges upon those who were entitled to Indian citizenship while they were to be denied to “aliens”.
- 2** The latter were even placed under certain disabilities.

CITIZENSHIP

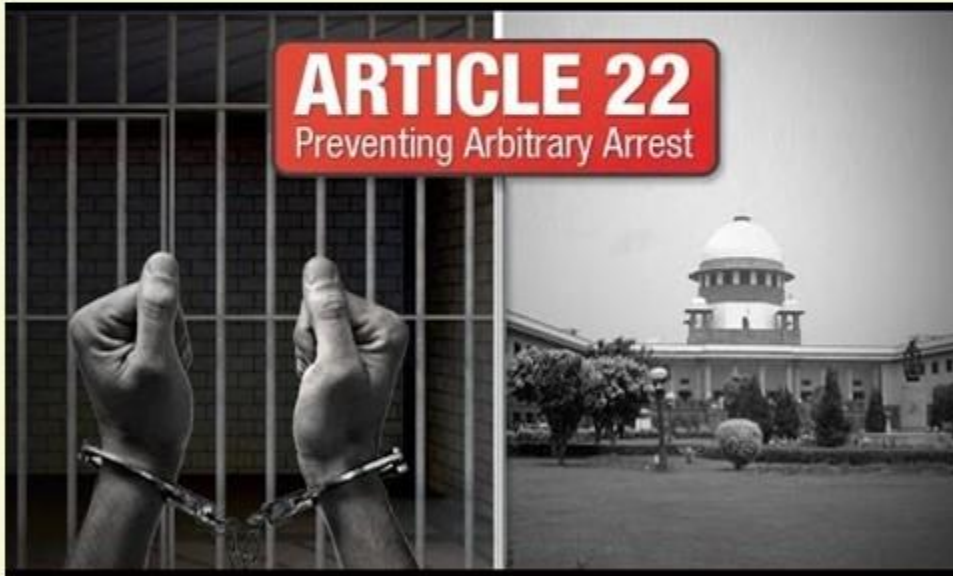
CONSTITUTIONAL RIGHTS AND
PRIVILEGES OF CITIZENS OF INDIA

3 Thus, Citizens of India have the following rights under the Constitution which aliens shall not have:

- i. Some of the Fundamental Rights belong to citizens alone, such as Arts 15, 16, 19.
- ii. Only citizens are eligible for certain offices, such as those of the
 - President [Art 58(1)(a)]
 - Vice-President [Art 66(3)(a)]
 - Judge of the Supreme Court [Art 124(3)] or High Court [Art 217(2)]
 - Attorney-General [Art 76(2)]
 - Governor of a State [Art 157]
 - Advocate General [Art 165]
- iii. The right of suffrage for election to the House of the People (of the Union) and the Legislative Assembly of every State and the right to become a member of the Parliament and of the Legislature of a State are also confined to citizens.

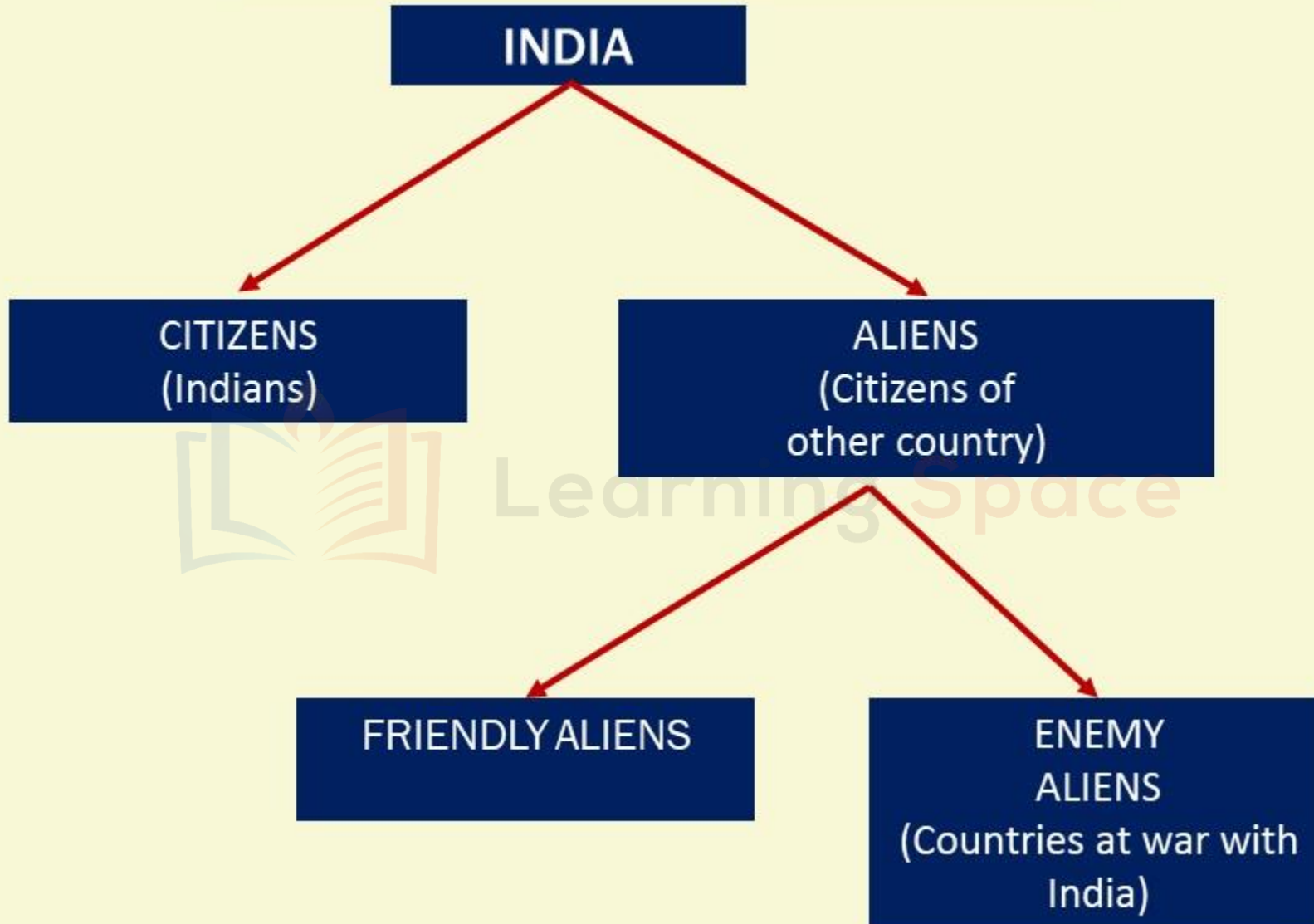
CITIZENSHIP

CONSTITUTIONAL RIGHTS AND PRIVILEGES OF CITIZENS OF INDIA



- 4 All of the above rights are **denied to aliens** whether they are 'friendly' or 'enemy aliens'.
- 5 But 'enemy aliens' suffer from a special disability- they are **not entitled to the benefit of the procedural provisions of Art. 22** relating to arrest and detention.
- 6 An alien enemy includes not only **subjects of a State at war with India** but also **Indian citizens who voluntarily reside in or trade with such a State.**

WHO ARE ENEMY ALIENS?





AJMAL KASAB

WHO ARE ENEMY ALIENS?

- Citizens are **members of India** and they **enjoy all political and civil rights**. Aliens, on the other hand, are **citizens of other countries** and hence enjoy only limited rights in India.
- **Enemy aliens** hail from countries that do not hold cordial relations with India.
- Enemy alien is mentioned in **Article 22** of the Indian constitution. However the **term is not defined in the constitution**.
- The term “enemy” is mentioned in the **Official Secret Act, 1923** as citizens from unfriendly state.

CITIZENSHIP

CONSTITUTIONAL AND STATUTORY BASIS OF CITIZENSHIP IN INDIA



— PARLIAMENT OF INDIA —

- 1 The Constitution, however, did not intend to lay down a permanent or comprehensive law relating to citizenship in India.
- 2 It simply described the classes of persons who would be deemed to be the citizens of India *at the date of the commencement* of the Constitution and left the entire law of citizenship to be regulated by some future law made by Parliament.

CITIZENSHIP

CONSTITUTIONAL AND STATUTORY
BASIS OF CITIZENSHIP IN INDIA

- 3 In exercise of this power, Parliament has enacted the **Citizenship Act of 1955**.
- 4 This Act makes **elaborate provisions for the acquisition and termination** of citizenship *subsequent to the commencement of the Constitution*.
- 5 The provisions of this Act are **to be read with the provisions of Part II of the Constitution** in order to get a complete picture of the law of Indian citizenship.
- 6 In view of the fact that the Act of Parliament only deals with the modes of acquisition of citizenship subsequent to the commencement of the Constitution, it would be convenient to deal with them separately.

CITIZENSHIP

CONSTITUTIONAL PROVISIONS OF
CITIZENSHIP IN INDIA

“Who are citizens of India at the time of the commencement of the Constitution?”

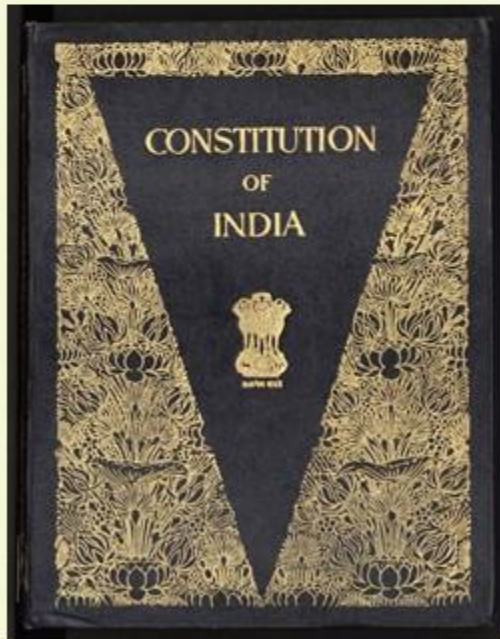
ARTICLE	PROVISIONS IN SHORT
5	Persons domiciled in India.
6	Persons migrated from Pakistan.
7	Persons migrated to Pakistan but later returned
8	Persons of Indian origin residing outside India.

CITIZENSHIP

CONSTITUTIONAL PROVISIONS OF
CITIZENSHIP IN INDIA

According to the Constitution, the following **four categories of person** became the citizens of India at its commencement i.e. **on 26 January 1950**.

ARTICLE 5



- 1** A person who had his domicile in India and also fulfilled any one of the **three conditions** became a citizen of India, viz,
 - if he was born in India; or
 - if either of his parents was born in India or
 - if he has been ordinarily resident in India for five years immediately before the commencement of the Constitution

CITIZENSHIP

CONSTITUTIONAL PROVISIONS OF
CITIZENSHIP IN INDIA

ARTICLE 6

1 A person who migrated to India from Pakistan became an Indian Citizen if he or either of his parents or any of his grandparents was born in undivided India and also fulfilled any one of the two conditions viz.

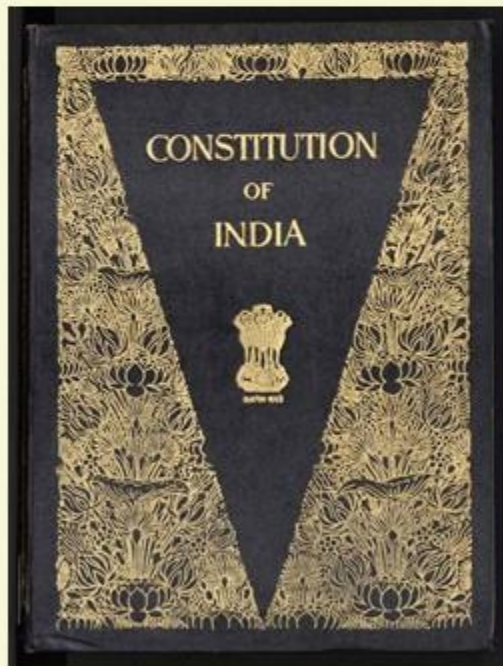
- in case he migrated to India before July 19, 1948, he had been ordinarily resident in India since the date of his migration:
- or in case he migrated to India on or after July 19, 1948, he had been registered as a citizen of India by an officer appointed for the purpose by the Gol.

2 But, a person could be so registered only if he had been resident in India for six months preceding the date of his application for registration (Article 6).

CITIZENSHIP

CONSTITUTIONAL PROVISIONS OF CITIZENSHIP IN INDIA

ARTICLE 7

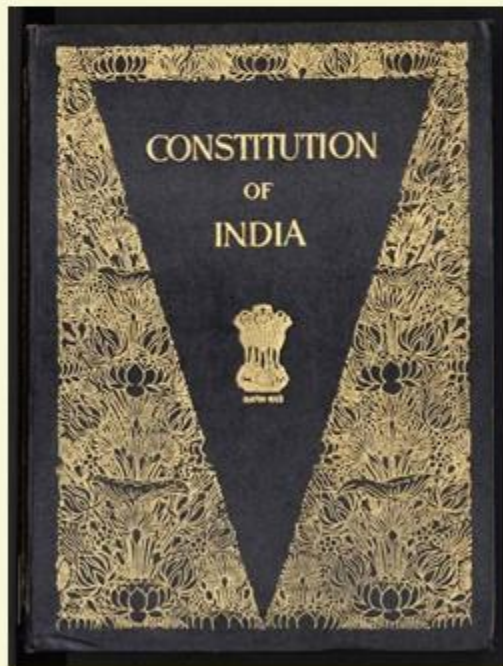


- 1** A person who migrated to Pakistan from India after March 1, 1947, but later returned to India for resettlement could become an Indian Citizen.
- 2** For this, he had to be resident in India for six months preceding the date of his application for registration (Article 7).

CITIZENSHIP

CONSTITUTIONAL PROVISIONS OF CITIZENSHIP IN INDIA

ARTICLE 7

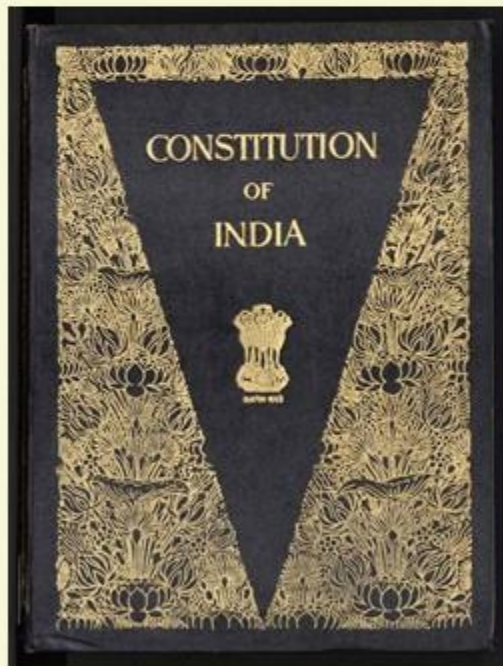


- 3 The meaning of migration mentioned in Article 7 is the migration before the commencement of the Constitution.
- 4 The person migrating from Pakistan to India, after January 26, 1950 are governed by the Citizenship Act, 1955.

CITIZENSHIP

CONSTITUTIONAL PROVISIONS OF
CITIZENSHIP IN INDIA

ARTICLE 8



1 A person who, or any of whose parents or grandparents, was born in undivided India but who is ordinarily residing outside India shall become an Indian citizen if he has been registered as a citizen of India by the diplomatic or consular representative of India in the country of his residence, whether before or after the commencement of the Constitution.

2 Thus, this provision covers the overseas Indians who may want to acquire Indian citizenship (Article 8).

CITIZENSHIP

CONSTITUTIONAL PROVISIONS OF
CITIZENSHIP IN INDIA

The other Constitutional provisions with respect to the citizenship are as follows:

ARTICLE 9

No person shall be citizen of India or be deemed to be a citizen of India, if he has voluntarily acquired the citizenship of any foreign State.

ARTICLE 10

Every Person who is or is deemed to be citizen of India shall continue to be such citizen, subject to the provisions of any law made by Parliament.

ARTICLE 11

Parliament shall have the power to make any provision with respect to the acquisition and termination of citizenship and all other matters relating to citizenship.

INDIAN POLITY

CITIZENSHIP

CONSTITUTIONAL PROVISIONS OF CITIZENSHIP IN INDIA

QUICK SUMMARY

ARTICLE	PROVISIONS IN SHORT
5	Persons domiciled in India.
6	Persons migrated from Pakistan.
7	Persons migrated to Pakistan but later returned
8	Persons of Indian origin residing outside India.
9	Persons voluntarily acquiring citizenship of a foreign State not to be citizens.
10	Continuance of the rights of citizenship.
11	Parliament to regulate the right of citizenship by law.

WE EXPRESS OUR
SINCERE THANKS
FOR VIEWING THIS VIDEO

Presented by



Learning Space

For Suggestions:

suggestions@learningspace.in

To Contact us:

info@learningspace.in

OUR TEAM

G. V. Rao
K. Srikanth
D. Sunil Kumar
L. V. Krishna
Y. Deepthi

Amrita Naidu
M. Binukrishna
G. Ravi Babu
D. Joji
K. Victor Babu

Visit us at:

www.learningspacedigital.com

0 8 6 6 -2 4 4 4 4 7 2
0 9 8 4 9 9 4 2 2 9 9